



Home safety assessment service agreement.

Agreement No. _____ • Version 2.3 • Alberta

This Agreement is between **Novo Industries Inc.**, an Alberta corporation carrying on business as **Senior Home Safety** ("Novo", "we", "us"), and the person or persons named below as the Client ("Client", "you"). It takes effect on the date of the last signature below.

1. Parties and engagement details.

Client (full legal name)	
Client email	
Client phone	
Client mailing address	
Assessment address (the "Home")	
Occupant(s) of the Home, if not the Client	
Client Representative, if any Complete Section 11 if signing for someone else	
Requested visit date	
Assessor attending	

Your visit date and time are confirmed by email once we have received both this signed Agreement and your payment.

Novo Industries Inc., o/a Senior Home Safety

Registered office: 923 McKinnon Drive NE, Calgary, AB T2E 6A6

Telephone: 587-907-3566 • Email: info@novoseniorsafety.com • Website: novoseniorsafety.com

GST registration No.: 716914023 RT0001

2. What we will do.

1. **The visit.** One of our assessors will attend the Home at the confirmed time and carry out a walkthrough of the areas you make available. The visit consists of visual observation, measurements, photographs, and a short conversation with you, the occupant, or family members. It takes about 1.5 hours for a condo or apartment and up to three hours for a large home. No written assessment or report is prepared during the visit.
2. **The report.** After the visit we prepare a written Home Safety Report covering the twelve categories we assess: entrances and exterior, bathroom safety, lighting and electrical, flooring and trip hazards, bedroom and living spaces, Alzheimer's and dementia, kitchen safety, stairs and hallways, fire safety, technology and emergency, personal safety, and crime prevention. The report sets out what we observed, prioritized recommendations, and a general cost index for the suggested changes.
3. **Delivery.** We will email the report to the Client, at the address in Section 1, within three business days after the visit. If something prevents that, we will tell you before the three days are up and agree a new date with you in writing.
4. **Questions afterward.** The fee includes one follow-up conversation of up to thirty minutes, by phone or video, within sixty days of delivery, to walk through the report.

3. What this assessment is not.

This section is important. Please read it before signing.

1. **Not a home inspection.** The assessment is not a home inspection and is not a home inspection service within the meaning of Alberta's *Consumer Protection Act* and its Home Inspection Business Regulation. We give no opinion on the condition, structure, systems, workmanship, remaining service life, insurability, marketability, or value of the Home. Nothing in the report should be used in connection with a purchase, sale, or financing of the Home.
2. **Not a code or compliance review.** We do not certify compliance with the Alberta Building Code, the *Safety Codes Act*, municipal bylaws, or any accessibility standard or

certification program. Where the report cites a standard such as CSA B652, it is cited as a plain-language reference point, not as a certification.

3. **Not health care.** We are not physicians, occupational therapists, physiotherapists, or nurses. The report is not a clinical, functional, cognitive, or medical assessment of any person, and it is not a substitute for advice from a health professional.
4. **Not a quote and not an appraisal.** Cost figures in the report are a general planning index drawn from typical local pricing. They are not quotes, estimates, tenders, or appraisals, and real costs will differ.
5. **Visual and non-invasive only.** We do not move heavy furniture or appliances, lift flooring, open walls or ceilings, dismantle anything, or test electrical, plumbing, heating, or ventilation systems. We do not enter areas that are locked, obstructed, unsafe, or that you ask us not to enter. Anything concealed or not reasonably visible on the day of the visit is outside the assessment.
6. **A snapshot in time.** The report describes what we observed on the visit date. It does not account for later changes to the Home, to its contents, or to any person's health or abilities.
7. **No guarantee of outcome.** Following the recommendations reduces risk. It cannot eliminate it. We do not warrant or guarantee that any person will not fall, be injured, or suffer loss in the Home, whether or not the recommendations are carried out.

4. Fees, GST and payment.

HOME TYPE (CHECK ONE)	FEE (CAD)
☐ Condo or apartment	\$295
☐ House up to 1,200 sq ft	\$395
☐ House, 1,200 to 2,500 sq ft	\$495
☐ Larger home, as quoted	\$ _____

ITEM	AMOUNT (CAD)
Home safety assessment fee (from the table above)	\$ _____
Travel surcharge, if the Home is more than 50 km from the Calgary city centre	\$ _____
Subtotal	\$ _____
GST (5%)	\$ _____
Total payable	\$ _____

1. **Fixed price.** The total above is a fixed price for the services described in Section 2, not an estimate. We will not charge more than that amount unless you agree to the additional work and the additional price in writing before we do it.
2. **When payment is due.** Payment of the full total is due when you book, before the visit. We confirm your visit date and time by email only once we have both your signed copy of this Agreement and your cleared payment. Nothing is invoiced to you after the visit.
3. **How to pay.** Interac e-Transfer to payment@novoseniorsafety.com, or by card through a Stripe invoice. Cash and cheques are not accepted. A returned or declined payment carries a \$35 administration charge, and the booking is not confirmed until payment clears.
4. **Refunds.** If you cancel 24 hours or more before the scheduled start of the visit, we refund everything you have paid within 15 days. Clause 4.5, and clause 5.3 where a visit is ended part way through, are the only circumstances in which any part of your payment is kept.
5. **Late changes, missed visits and access.** If you cancel or reschedule with less than 24 hours' notice, if no one is at the Home when we arrive, or if we cannot safely carry out the visit for a reason within your control, we keep a late-change fee equal to 20% of the assessment fee (for example, \$79 on a \$395 visit), plus GST on that fee, and refund the balance within 15 days. If you would rather move the visit than cancel it, your payment carries over to the new date and the late-change fee is paid before the new visit is confirmed. That fee is our only remedy for a late change or a missed visit.
6. **When no late-change fee applies.** No late-change fee applies where the occupant declines the visit; where the Client or occupant has a medical emergency or is admitted to hospital; or where you booked a visit that was less than 24 hours away at the time of booking.

7. **Overdue amounts.** Should any amount ever fall overdue, it carries interest at 1.5% per month, being 19.56% per year, calculated from the due date until paid.
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5. Your right to cancel.

1. **Cancelling before the visit.** You may cancel this Agreement at any time before the visit begins by telling us in writing. Email is fine. No reason is needed. We refund everything you have paid within fifteen days, subject only to clause 4.5 where you give less than 24 hours' notice.
 2. **If this Agreement is signed in person.** Our practice is to sign electronically before the visit, and we do not ask you to sign at the Home. If this Agreement is nevertheless negotiated or signed in person at a place other than our place of business, it is a direct sales contract under Alberta's *Consumer Protection Act*, and the cancellation rights set out in Schedule A apply in addition to anything in this Section. Schedule A prevails over this Section to the extent of any conflict.
 3. **Our right to end the engagement.** We may cancel before the visit for any reason by refunding everything you have paid. If we miss or cancel a booked visit, you choose between a new date within five business days and a full refund. We may also end a visit part way through if Section 7 applies, in which case we refund the fee less a fair amount for work already done.
 4. **Your statutory rights are not affected.** Nothing in this Agreement waives, limits, or releases any right, benefit, or protection you have under Alberta's *Consumer Protection Act* or its regulations. Any provision that would have that effect does not apply to that extent.
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6. Photographs, privacy and your information.

1. **What we collect.** Your contact details; photographs and measurements of the interior and exterior of the Home; notes on how the occupant moves through and uses the Home, and on any mobility aids or equipment in use; and your payment records.
2. **Why we collect it.** Solely to prepare and deliver the report, to answer your questions about it, to collect payment, and to keep the business records the law requires us to keep. We do not sell personal information, and we do not share it with contractors, suppliers, insurers, or anyone else without your written instruction, unless the law requires it.
3. **Consent.** By signing, you consent to us collecting, using, and keeping this information for those purposes. Where the occupant is not the Client, you confirm the occupant has

been told about the visit and agrees to it, or that you hold the authority described in Section 11.

4. **Other people in the Home.** We ask that other household members and caregivers not appear in photographs. If someone does appear, tell us and we will delete or crop the image.
5. **How long we keep it.** Photographs are deleted twenty-four months after delivery of the report. The report and the associated business records are kept for seven years, which is the period Canadian tax and limitation rules require. You may ask us in writing to delete photographs sooner and we will do so.
6. **Where it is stored.** We store information on encrypted, password-protected devices and business cloud accounts. Some of our service providers, including our e-signature provider (SignWell), our card payment processor (Stripe) and our email provider, store or process data on servers outside Canada, which means that data may be accessible to foreign courts and law enforcement under the laws of those countries. Contact us for the current list of those providers and how they handle information.
7. **Your rights.** You may ask to see the personal information we hold about you, ask us to correct it, and withdraw your consent at any time on reasonable notice, though withdrawing consent before the report is complete means we cannot finish the work. Requests go to info@novoseniorsafety.com and we will answer within 45 days.
8. **If something goes wrong.** If personal information in our care is lost or accessed without authorization and there is a real risk of significant harm to you, we will report it to the Information and Privacy Commissioner of Alberta and to you, without unreasonable delay, as Alberta's *Personal Information Protection Act* requires.
9. **Privacy contact.** Carl Christie, Director, Novo Industries Inc., info@novoseniorsafety.com, 587-907-3566.

Optional — marketing consent. Separate from the service above, may we use anonymized photographs, or a short quote from you, in our marketing? We would never publish your name, address, or anything identifying the Home without asking you again in writing first. Saying no changes nothing about the service or the price.

☐ Yes ☐ No Client initials: _____

7. Access, safety and conditions at the Home.

1. You will give us safe and reasonable access to the Home at the confirmed time, and will make sure someone aged 18 or over is present throughout the visit.

2. Pets must be secured. Please tell us in advance about anything that affects a safe visit, including known hazards, firearms in the Home, smoking, mould, pests, or aggressive animals.
 3. We may pause or end the visit if the assessor reasonably believes the Home is unsafe, if the occupant is distressed or does not want us there, or if anyone at the Home behaves abusively. Section 5.3 then applies.
 4. We do not move, repair, adjust, or install anything at the Home, and we do not perform or supervise any of the work the report recommends.
 5. **Immediate danger.** If we see something we believe presents an immediate risk to a person's life or safety, we will tell you and the occupant right away, and you agree that we may contact emergency services if the circumstances call for it. We have no duty to investigate, monitor, supervise, or report on anyone's welfare beyond that.
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8. The report — acceptance, use and ownership.

1. **Acceptance.** The report is treated as accepted ten business days after we email it, unless you write to us within that period setting out what is factually wrong or incomplete. We will correct any genuine error or omission at no charge. The fee is not refundable because you disagree with a recommendation, and no further amount becomes payable either.
2. **Ownership.** Novo owns the copyright in the report, the photographs, and the assessment method and materials behind them.
3. **Your licence to use it.** On payment in full, you get a permanent, non-exclusive, no-cost right to use the report for your own personal and family purposes. That includes sharing it with your family, your health care providers, your contractors, your insurer, and any funding or grant program you apply to.
4. **Limits on use.** You may not sell, publish, or licence the report, use it for any commercial purpose, or present it as an inspection, appraisal, or certification of the Home.
5. **No reliance by others.** The report is prepared for you alone, for the purposes in Section 2. No one else may rely on it, including any buyer, seller, lender, insurer, realtor, or contractor. We accept no responsibility to anyone other than the Client.
6. **Confidentiality.** We keep the contents of the report and everything we learn about you and the Home confidential, except where you direct otherwise or the law requires disclosure.

9. Our qualifications, independence and insurance.

1. The assessment is carried out by, or under the direct supervision of, a person holding the Senior Home Safety Specialist (SHSS) designation and the Rick Hansen Foundation Accessibility Certification (RHFAC) Professional designation.
2. Those designations are professional credentials. They are not a provincial licence, and they do not make us a home inspector, engineer, architect, or health professional.
3. **Independence.** We do not sell, supply, install, or arrange any product, equipment, or modification. We accept no commission, referral fee, rebate, or other benefit from any contractor, supplier, or vendor named or described in the report. If that ever changes, we will tell you in writing before we deliver the report.
4. **Insurance.** Novo carries commercial general liability insurance of not less than \$2,000,000 per occurrence, and errors and omissions (professional liability) insurance of not less than \$1,000,000. We will provide a certificate of insurance on request. We will not attend a visit unless that coverage is in force on the visit date.

10. Responsibility and limits on it.

1. **Our standard.** We will perform the services with the reasonable care and skill of a competent home safety assessor holding the designations in Section 9. We make no other warranty, express or implied, and any implied warranty is excluded to the extent the law allows.
2. **What we are not responsible for.** We are not responsible for: the accuracy of information you or the occupant give us; conditions that were concealed or not reasonably visible during the visit; anything you choose not to have us look at; the work, pricing, conduct, or timing of any contractor or supplier you engage; the decisions you make after reading the report; or any change in the Home or in anyone's health after the visit date.
3. **Limit on the amount.** Except as stated in clause 10.5, our total liability to you under or connected with this Agreement, however it arises, including in contract, in tort, in negligence, or under statute, is limited in the aggregate to the total fees you have paid us under this Agreement.
4. **No indirect losses.** Neither party is liable to the other for indirect, incidental, or consequential losses, or for lost profit, lost revenue, or lost opportunity.
5. **What is not limited.** Clauses 10.3 and 10.4 do not apply to death or personal injury, or to physical damage to the Home or its contents, caused by our negligence or that of

anyone we send to the Home. Nor do they apply to fraud, to willful misconduct, or to any liability that cannot be limited or excluded by law, including under Alberta's *Consumer Protection Act*.

6. **Your indemnity.** You will indemnify us against any claim brought by a third party who was given the report and relied on it, to the extent that claim arises from that reliance. This does not apply to a claim by anyone we owe a duty to at law regardless of this Agreement.

11. Signing for someone else — authority and capacity.

Complete this section if you are signing on behalf of the occupant of the Home rather than for yourself.

1. The person signing as Client Representative confirms that they are:
 - ☐ an attorney under an enduring power of attorney
 - ☐ an agent under a personal directive
 - ☐ a guardian or trustee appointed under Alberta's *Adult Guardianship and Trusteeship Act*
 - ☐ a family member acting with the occupant's knowledge and agreement
 - ☐ other: _____
2. The Client Representative confirms they have the authority to enter into this Agreement, to consent to the visit and to the photographs, and to commit to the fee. We may ask to see the document that grants that authority.
3. The Client Representative is personally responsible for payment of the fee, together with the Client, on a joint and several basis.
4. If the occupant objects to the visit at any time, whatever the paperwork says, we will stop. Section 5.3 then applies.

12. Term and ending this Agreement.

1. This Agreement runs until the report is delivered, unless ended earlier under Section 5.
2. Either party may end this Agreement on written notice if the other party is in material breach and has not fixed it within ten days of being asked to.
3. Fees for work properly done before the Agreement ends remain payable, subject to Section 5.
4. Sections 3, 6, 8, 10 and 14 survive the end of this Agreement.

13. Signing electronically.

1. The parties agree to sign this Agreement electronically. An electronic signature applied through our e-signature platform, SignWell, is as binding as a handwritten one, under Alberta's *Electronic Transactions Act*.
2. You agree to receive this Agreement, the report, and notices about them in electronic form. You may ask for a paper copy at any time at no charge.
3. Each party will receive a completed copy, together with the platform's signing record, at the email address in Section 1.

14. General.

1. **Governing law.** Alberta law governs this Agreement, and the parties submit to the courts of Alberta.
2. **Talking first.** If a dispute comes up, the parties will try in good faith to resolve it directly, and will consider mediation, before starting a court proceeding. Nothing here prevents either party from going to court, including the Alberta Court of Justice for a civil claim.
3. **Time limits.** Nothing in this Agreement shortens any limitation period. Alberta's *Limitations Act* applies as written.
4. **Notices.** Notices go by email to the addresses in Section 1, and are treated as received on the next business day after sending.
5. **Whole agreement.** This Agreement, with Schedule A, is the entire agreement between the parties about the services, and replaces anything said or written before it. It does not exclude liability for a fraudulent statement.
6. **Changes.** Any change must be in writing and signed by both parties.
7. **Severability.** If any part of this Agreement is unenforceable, the rest stays in force.
8. **No waiver.** A delay in enforcing a right does not waive it.
9. **Assignment.** Neither party may assign this Agreement without the other's written consent, except that Novo may assign it as part of a sale or reorganization of its business.
10. **Independent contractor.** Novo is an independent contractor. Nothing here creates a partnership, agency, employment, or care relationship.
11. **Events beyond control.** Neither party is in breach for a delay caused by something outside its reasonable control, including severe weather, illness, or a public emergency. A visit delayed for such a reason will be rescheduled, and no late-change fee applies.

15. Signatures.

Each party has read this Agreement, including Section 3 and Section 10, and agrees to it.

CLIENT

CLIENT REPRESENTATIVE (SECTION 11)

SIGNATURE

SIGNATURE

PRINT NAME

PRINT NAME AND CAPACITY

DATE

DATE

**NOVO INDUSTRIES INC., O/A SENIOR
HOME SAFETY**

SIGNATURE

Carl Christie, Director

PRINT NAME AND TITLE

DATE



Schedule A.

STATEMENT OF CANCELLATION RIGHTS — DIRECT SALES CONTRACTS

When this Schedule applies. This Schedule applies only where this Agreement is negotiated or signed in person at a place other than Novo's place of business, which makes it a direct sales contract under Alberta's *Consumer Protection Act*. Where the Agreement is signed remotely by electronic signature before the visit, which is our normal practice, Section 5 of the Agreement governs instead.

Your Right to Cancel

You may cancel this contract from the day you enter into the contract until 10 days after you receive a copy of the contract. You do not need a reason to cancel.

If you do not receive the goods or services within 30 days of the date stated in the contract, you may cancel this contract within one year of the contract date. You lose that right if you accept delivery after the 30 days. There are other grounds for extended cancellation. For more information, you may contact your provincial or territorial consumer affairs office.

If you cancel this contract, the seller has 15 days to refund your money and any trade-in, or the cash value of the trade-in. You must then return the goods.

To cancel, you must give notice of cancellation at the address below. You must give notice of cancellation by a method that will allow you to prove that you gave notice, including registered mail, fax, or personal delivery.

Notice of cancellation goes to:

Novo Industries Inc., o/a Senior Home Safety

923 McKinnon Drive NE, Calgary, AB T2E 6A6

Email: info@novoseniorsafety.com • Telephone: 587-907-3566

Additional information required for a direct sales contract.

Date and place the contract was entered into	
Name of the salesperson present	
Novo's direct seller licence No., if applicable	
Description of the services	As set out in Section 2 of the Agreement
Itemized price, total and terms of payment	As set out in Section 4 of the Agreement
Date services commence / are completed	The confirmed visit date; the date the report is delivered under Section 2
Credit extended / trade-in	None. No credit is extended, no security is taken, and no trade-in is involved.

Client signature acknowledging receipt: _____ Date: _____